Service Attachment for Managed Compliance Services

Effective November 2, 2026. This Service Attachment supersedes prior versions for Orders signed on or after its effective date.

This Service Attachment is part of the Agreement between The Boom Company (dba Boom Logic) ("Provider," "we," "us," or "our") and the Client identified in the Order ("Client," "you," or "your") under the Master Services Agreement. It applies when the Order includes managed compliance services (the "Managed Compliance Services"). Capitalized terms not defined here have the meanings in the Master Services Agreement.

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1. Managed Compliance Services

Provider will deliver only the compliance Services itemized in the Order, for the regulatory frameworks the Order identifies (for example, the HIPAA Security Rule, the FTC Safeguards Rule under the Gramm-Leach-Bliley Act, or PCI DSS) (the "Identified Frameworks"). "Regulated Information" means the protected health information, nonpublic personal information, cardholder data, or other information that an Identified Framework protects. The available Services include:

1.1 Risk Assessment

- Conduct a risk assessment to identify and evaluate risks to the confidentiality, integrity, and availability of Regulated Information, including risks in its collection, storage, transmission, and disposal.
- Develop a risk-management plan that prioritizes identified risks by likelihood and impact on Client's operations.

1.2 Information Security Program Development

- Develop a written information security program, policies, and procedures tailored to Client's size, complexity, and Identified Frameworks.
- Recommend administrative, technical, and physical safeguards, including access controls, encryption, secure disposal, and workforce training.

1.3 Privacy Notice and Policy Support

- Where an Identified Framework requires it, help Client prepare and review privacy notices and policies for accuracy against Client's actual practices. Final content, and any legal sufficiency review, are Client's responsibility and that of its counsel.

1.4 Workforce Training and Awareness

- Deliver an ongoing workforce training program on security and privacy practices relevant to the Identified Frameworks, with periodic refresher training.

1.5 Vendor Management

- Help Client maintain an inventory of vendors that have access to Regulated Information and track whether required agreements (such as business associate agreements) and security assurances are in place.

1.6 Incident Response Planning

- Develop and maintain an incident response plan for incidents involving Regulated Information, and support Client's breach risk assessment and notification process. Legal advice on notification obligations is not included.

1.7 Ongoing Monitoring and Reporting

- Periodically review Client’s program against the Identified Frameworks and report on the status of risk mitigation, training completion, and vendor assurances.
- Maintain current documentation of the program, risk management plan, and policies.

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2. Client Responsibilities

2.1 Responsibility for Compliance

Client remains responsible for its own compliance with the laws, regulations, and standards that apply to it, and for decisions about which recommendations to adopt. Provider is responsible for performing the compliance Services in the Order in a professional and workmanlike manner and accurately.

2.2 Cooperation

Client will provide timely access to the personnel, facilities, systems, documentation, and information reasonably required, will designate a representative with authority to make decisions and approvals, and will notify Provider promptly of changes to its operations, systems, or vendors that could affect the Services or its compliance.

2.3 Insurance

In addition to the insurance required by the Master Services Agreement, Client should maintain cyber liability coverage that includes regulatory defense and penalties where insurable.

3. Allocation of Responsibility

3.1 Regulatory Actions

Provider is not responsible for fines, penalties, or regulatory actions imposed on Client except to the extent they result from Provider’s failure to perform the Services as agreed, its negligence, or its breach of the Agreement, in which case the Master Services Agreement (including its indemnity and limitation of liability provisions) applies.

3.2 Indemnity

Client will defend and indemnify Provider, under the procedures in Section 14.3 of the Master Services Agreement, against claims arising out of a regulatory investigation of Client to the extent the claim results from inaccurate or incomplete information that Client supplied to Provider or from Client’s own non-compliance with an Identified Framework, and not from Provider’s failure to perform the Services as agreed, its negligence, or its breach of the Agreement. This indemnity is subject to the General Cap in the Master Services Agreement.

3.3 Exclusions

The Services do not cover compliance with frameworks other than the Identified Frameworks. Provider is not responsible for consequences to the extent caused by Client’s failure to meet its own obligations or to adopt Provider’s written recommendations (subject to Section 5.4 of the Master Services Agreement), or by the acts of vendors engaged by Client and not managed by Provider.

3.4 No Certification

Provider does not issue certifications of compliance and does not warrant that the Services will satisfy any particular auditor, assessor, or regulator. Provider will reasonably support Client during audits and assessments that concern the Services.

4. Term and Termination

The term, renewal, early termination, termination for cause, and effect of termination provisions of the Service Attachment for Managed Services (Section 7) and Section 4 of the Master Services Agreement apply to this Service Attachment as if set out here in full.

Version history

VERSION	EFFECTIVE	STATUS
Service Attachment for Managed Compliance Services	November 2, 2026	Current — supersedes and replaces all prior versions. Changes: generalized to the regulatory frameworks identified in the Order (including HIPAA); removed industry-specific references; fault-based allocation of regulatory fines and indemnity; term and termination now follow the Service Attachment for Managed Services.
Service Attachment for Managed Compliance Services	July 1, 2026	Superseded November 2, 2026 — archived version · PDF. Entity name corrected to “The Boom Company” (no “Inc.”) on August 30, 2026 — typographical correction only; no change to terms.
Service Attachment for Managed Compliance Services	June 4, 2023	Superseded July 1, 2026 (available on request)